

1.

CASE #	CASE NAME	HEARING NAME
CVRI2200196	SPANN vs BANKERS INSURANCE COMPANY	RENEWED MOTION FOR DISCOVERY PURSUANT TO EVIDENCE CODE § 1043 ET SEQ. (PITCHESS)

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501638	DOE #1 (M.A.) vs MESSAGE GREEN INTERNATIONAL FRANCHISE CORP.	MOTION TO QUASH SUPBOENAS ISSUED BY DEFENDANTS GREEN MAGNOLIA, LLC AND JABREY ELJAHMI; AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling: The Court GRANTS the Motion to Quash. The Court awards sanctions to Plaintiff in the amount of \$1,060 (\$500/hour x2 hours + \$60 filing fee), to be paid within 21 days.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505953	BOHLER vs VAL-CHRIS INVESTMENTS, INC.	MOTION FOR AN ORDER PERMITTING SERVICE OF PROCESS THROUGH THE CALIFORNIA SECRETARY OF STATE

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602780	MURILLO CONTRERAS vs FLORES	DEMURRER ON COMPLAINT

Tentative Ruling: The Court **OVERRULES** in part and **SUSTAINS** in part Defendant's Demurrer.

OVERRULED in part as to 1st, 2nd, 3rd, 4th, 5th, 6th, 9th, and 11th causes of action. As to these causes of action, the Complaint alleges facts sufficient to state the causes of action. In ruling upon a demurrer, the court gives effect "to every allegation in the

complaint, and the demurrer must be overruled if the complaint states, or from its averments it can be reasonably be inferred, that plaintiff has a cause of action against defendant on any theory.” (*Beason v. Griff* (1954) 127 Cal.App.2d 382, 386-387.)

SUSTAINED with leave to amend as to 7th, 8th, and 10th causes of action.

Plaintiff to file an amended pleading within 21 days. (Cal. Rules of Court, rule 3.1320(g).)

Factual / Procedural Context:

Now before the Court is Defendant's demurrer to Plaintiff's verified Complaint. Plaintiff brings an action seeking to quiet title, as well as to impose a constructive or resulting trust in his favor on a residential real property located at 3029 Blue Cascade Drive, Perris, CA 92571. Plaintiff is in pro per. The facts alleged in the Complaint can be summarized as follows.

Plaintiff and his late spouse acquired the subject residential property in or about 2007, which became their “family home.” (Complaint, pg. 3, ln. 17-19.) In or about 2011, Plaintiff experienced temporary financial hardship and did not have the credit to refinance the existing mortgage on the home. (Complaint, pg. 3, ln. 23-25.) Defendant, who is Plaintiff's stepson, agreed to assist Plaintiff in obtaining refinance loan in amount of \$215,299 solely as an accommodation, and Plaintiff transferred title in Defendant's name for this purpose only. (Complaint, pg. 3, ln. 26- pg. 4, ln. 1-4.) Plaintiff or his spouse understood that Defendant's role in the refinance transaction was to facilitate refinancing in order to preserve the home, and transfer of title to Defendant was never intended to constitute a gift, sale, transfer, inheritance, or conveyance of Plaintiff's beneficial ownership interest. (*Ibid.*) Defendant made no contributions for the purchase, down payment, or mortgage to justify any beneficial claim to the property. (Complaint, pg. 4, ln. 4-6.) Plaintiff paid all mortgage payments, taxes, insurance, and the costs to maintain, repair, and preserve the property. In 2016, following Defendant's divorce, he moved into the subject property. When Plaintiff's spouse passed away in 2024, Plaintiff made repeated requests to Defendant to restore title to Plaintiff by executing a transfer documentation or otherwise acknowledge Plaintiff's sole equitable ownership. (Complaint, pg. 4, ln. 18-20.) However, despite Plaintiff's repeated good-faith attempts, Defendant has refused “only providing his own conditions” and continues to retain title. (Complaint, pg. 4, ln. 23-25.)

Plaintiff filed his Complaint on July 13, 2026, alleging the following 11 causes of action: (1) Quiet title; (2) declaratory relief; (3) constructive trust; (4) resulting trust; (5) cancellation/ reformation of instrument; (6) financial elder abuse (Welf. & Instit. Code, § 15610.30 et al.); (7) fraud/promissory fraud; (8) negligent misrepresentation; (9) unjust enrichment; (10) accounting; and (11) preliminary and permanent injunctive relief. The Complaint is verified as required by statute for an action to quiet title over real property. (See Code Civ. Proc., § 761.020.)

Defendant now demurs to the Complaint. Defendant demurs to the entire Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action and that it is uncertain, ambiguous, and unintelligible. Defendant also contends that the action, to the extent the Complaint's claims depend on the alleged 2011 refinance, title transfer, promise, deed, or instrument, is barred by the application statute of limitations as the Complaint fails to plead facts establishing timely accrual, delayed discovery, tolling, or a later actionable repudiation for each cause of action.

Analysis

I. Defendant satisfied the obligation to meet and confer prior to filing the demurrer.

Code of Civil Procedure section 430.41 mandates that, before filing a demurrer, the demurring party meet and confer "in person or by telephone with the party who filed the pleading that is subject to demurrer." (Code Civ. Proc., § 430.41(a).) This requirement was met.

The demurrer was filed with the form Declaration of Demurring or Moving Party In Support of Automatic Extension (CIV-141), which was signed by his counsel of record, Valeria Granata of DiJulio Law Group. It states that, on June 16, 2026, defense counsel called Plaintiff informing the purpose of the call was to meet and confer. However, Plaintiff stated he did not speak English and requested a call back the next day. Defense counsel called back the next day and the day after, but no one answered. Defendant complied with section 430.41 by filing a declaration indicating that the party who filed the pleading subject to the demurrer "failed to respond to the meet and confer request" or "otherwise failed to meet and confer in good faith." (Code Civ. Proc., §§ 430.41(a)(3)(A)&(B), 435.5(a)(3)(A)&(B).)

II. Legal Standard.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., §430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120,125.) The court assumes the truth of all material which have been properly pleaded, of which may be inferred from those expressly pleaded, and of any material of which judicial notice has been requested and may be taken (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

Additionally, a general demurrer lies where the dates alleged in the complaint show "clearly and affirmatively" that the action is barred by a statute of limitations. "[I]t is

not enough that the complaint shows that the action may be barred.” (*Geneva Towers Ltd. Partnership v. City & County of San Francisco* (2003) 29 Cal.4th 769, 781.) A demurrer based on an affirmative defense, such as a statute of limitations defense, will be sustained only when the face of the complaint clearly discloses the action is barred. (*Stella v. Asset Mgmt. Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.)

III. COURT OVERRULES DEMURRER IN PART AND SUSTAINS IN PART

a. 1st, 2nd, 3rd, 9th, and 11th causes of action.

The Court OVERRULES the demurrer as to the 1st, 2nd, 3rd, 9th, and 11th causes of action.

Defendant first argues that the entire Complaint is subject to a demurrer on the ground of uncertainty (Code Civ. Proc., § 430.10(f)). Defendant argues that the Complaint is uncertain because it contains “repeated numbering errors, labels the claims inconsistently, omits the deed or other title instrument, fails to identify the operative written instrument allegedly subject to cancellation or reformation, and never explains the title chain.” (Demurrer, 9:25-10:4.) This argument is without merit as the pleading sufficiently alleges facts from which reasonable inferences may be drawn to plead the causes of action. “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citation.]” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.)

Defendant also argues that the Complaint is insufficient to state a cause of action to quiet title because the elements of Code of Civil Procedure section 761.020 were not specifically alleged. Section 761.020 provides for the essential elements of a claim to quiet title, which must be alleged in the verified complaint: (a) A description of the property that is the subject of the action.... In the case of real property, the description shall include both its legal description and its street address.... [¶] (b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title.... [¶] (c) The adverse claims to the title of the plaintiff against which a determination is sought. [¶] (d) The date as of which the determination is sought.... [¶] (d) A prayer for the determination of the title of the plaintiff against the adverse claims. Here, the Complaint alleges sufficient facts establishing these elements.

First, the subject property is described by its common street address and legal description. Second, Plaintiff alleges that, in 2007, he acquired legal title to the property which he transferred to Defendant in 2011 for the sole purpose of refinancing the existing mortgage on the property and since then has maintained his beneficial or equitable title to the property as to which a determination is sought. Third, although the date as of which the determination is sought is not specifically identified, it can be reasonably inferred from the factual allegations that Plaintiff is seeking to quiet title to the property based on his alleged equitable title which he maintained since 2011. Fourth, the adverse claim against which determination is sought is any interest

Defendant is asserting in the title instrument used to convey legal title to Defendant allegedly for the sole purpose of obtaining refinancing of the existing mortgage. “ ‘A quiet title action seeks to declare the rights of the parties in realty....’ ” (*Chao Fu, Inc. v. Chen* (2012) 206 Cal.App.4th 48, 58.) “ ‘The object of the action is to finally settle and determine, as between the parties, all conflicting claims to the property in controversy, and to decree to each such interest or estate therein as he may be entitled to....’ ” (*Id.* at 59.) Title may be quieted to equitable interest in land. (See *Bacon v. Bacon* (1937) 21 Cal.App.2d 540, 542.) Hence, based on the facts alleged, Plaintiff has established the elements required to assert a quiet title action and in turn has sufficiently alleged a claim for declaratory relief for a judicial declaration of ownership, which Defendant concedes is wholly derivative of the quiet title cause of action.

Based on the same underlying facts, Plaintiff has sufficiently alleged his claims for constructive trust, unjust enrichment, and injunctive relief. Title may be quieted against the holder of legal title based on a claim of interest under a constructive trust. (See *Buchner v. Malloy* (1909) 155 Cal.253, 256 [plaintiff’s remedy was not to quiet title as owner, but to seek a decree compelling defendant to convey to her a title claimed to be held by him in trust for her].) “A constructive trust is an involuntary equitable trust created by operation of law as a remedy to compel the transfer of property from the person wrongfully holding it to the rightful owner. [Citations.] The essence of the theory of constructive trust is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing. [Citation.] (*Campbell v. Superior Court* (2005) 132 Cal.App.4th 904, 920; *Dreher v. Rohrmoser* (1955) 134 Cal.App.2d 196, 197 [judgment affirmed to quiet title against an employee of plaintiff who had taken title for convenience of plaintiff].) “The basis of a constructive trust is to enforce an oral contract to bequeath property, in equity, by a quasi-specific performance. It is well established that in such an action the agreement does not have to be in writing, on the grounds either of estoppel or a resulting or constructive trust.” (*Dini v. Dini* (1961) 188 Cal.App.2d 506, 574.) Defendant argues that none of the claims for constructive trust, unjust enrichment, or injunctive relief is an independent cause of action and should be subject to a demurrer. This argument fails as the grounds for demurrer do not include an objection based on improperly alleging remedies as separate counts. (See Code Civ. Proc., § 430.10.) The Legislative Committee Comments for section 430.10 mentions that, following the repeal of the former statutory provision, improper joinder of causes of action is no longer a ground for objection. (Stats. 1971, c. 244, p. 383, §29, operative July 1, 1972.)

b. 5th cause of action for cancellation.

The same underlying facts also support a cause of action for cancellation of instrument. An action may be brought to cancel a written instrument (1) that is void or voidable (2) when there is a reasonable apprehension that if it is left outstanding it may cause a serious injury. (Civ. Code, §3412.) “A deed takes effect from its delivery, and if delivery is wanting, it is void ab initio.” (*Reina v. Erassarret* (1949) 90 Cal.App.2d 418, 426-427.) In contrast to a quiet title action, which may be framed simply by alleging that the plaintiff is the owner and entitled to possession and that defendant is claiming a

claim without right which is adverse to plaintiff, “an action to remove a cloud on title, under Civil Code section 3412, is aimed at a particular instrument, or piece of evidence.” [Citation.] (*Wolfe v. Lipy* (1985) 163 Cal.App.3d 633, 638, disapproved on other grounds by *Droeger v. Friedman, Sloan & Ross* (1991) 54 Cal.3d 26.) Defendant contends that the Complaint does not identify any deed or title instrument to be subject to cancellation or reformation. Nevertheless, it may be reasonably inferred from the pleading that Plaintiff is seeking cancellation of the 2011 instrument by which title was transferred to Defendant in facilitating a refinance loan. Although Plaintiff did not identify the instrument by its recordation date or official document number, the Complaint sufficiently sets forth the essential facts of the case with “reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.)

c. 4th cause of action for resulting trust.

The same underlying facts also support a cause of action for resulting trust. Unlike a constructive trust, a resulting trust is not based on fraud but is imposed by law to enforce the actual or implied intentions of the parties. (*Johnson v. Johnson* (1987) 192 Cal.App.3d 551, 556.) Defendant argues that the resulting trust claim is not sufficiently alleged because “Plaintiff does not allege the date or instrument by which Defendant took title, the consideration paid in that transaction, who paid it, whether Plaintiff paid funds contemporaneously with the title transfer, or the exact facts showing absence of donative intent.” (Demurrer, 12:9-12.) Defendant cites no authority providing that a claim for resulting trust demands such level of specificity. In *Johnson v. Johnson, supra*, 192 Cal.App.3d 551, the court upheld a judgment for resulting trust in favor of the mother who filed an action against her son for imposition of resulting trust where title to a property was placed in the son’s name solely for the purpose of procuring a G.I. loan to purchase the property and where it was fully understood by the son that his parents would be the actual and beneficial owners of the property paying all of the costs associated with maintenance of the home. (*Id.* at 554.) Here, the facts alleged in the Complaint mirror the facts of that case. Plaintiff and his late wife transferred title to the real property to Defendant solely to obtain refinancing and have been paying all mortgage payments owed on the refinance loan as well as all maintenance costs in connection to the property. In such situations, a trust is presumed to result in favor of the plaintiff.

d. 6th cause of action for financial elder abuse.

A cause of action for financial elder abuse has also been sufficiently alleged. Section 15610.30 defines financial abuse as occurring when someone (1) “takes, secretes, appropriates, obtains, or retains” real or personal property of an elder or dependent adult for (2) a wrongful use or with intent to defraud or by undue influence. Section 15610.30(c) clarifies the words, “takes, secretes, appropriates, obtains, or retains” when the elder or dependent adult is deprived of any property right. Subsection (c) goes on to explain that the act of taking, secreting, etc., can occur by any means,

including by agreement. Here, the Complaint alleges sufficient facts from which to infer that Defendant has retained title to the property despite having agreed that he is only receiving title to assist in obtaining a refinance loan. It is further alleged that Defendant refused to return title to Plaintiff p that resulted in depriving Plaintiff, a person over the age of 65, of his property right.

e. 7th and 8th causes of action for intentional and negligent misrepresentation, respectively.

Defendant, however, correctly argues that the fraud causes of action (intentional and negligent misrepresentation) are insufficiently pleaded and therefore are susceptible to a demurrer. Although it is true that an action for intentional misrepresentation can be based on a promise made without intending to fulfill it – i.e., “promissory fraud,” the facts are not sufficient to show that Defendant formed the requisite intent at the time of taking title to never intended to keep his promise to return title to Plaintiff. Furthermore, as Defendant contends, an actionable fraud claim based on negligent misrepresentation must be premised on a representation regarding a “past or existing material fact,” not representation about a future event. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 458.) Therefore, the Court SUSTAINS the demurrer as to the fraud claims. The Court grants Plaintiff leave amend.

f. 10th cause of action for accounting

Same is true for Plaintiff’s cause of action for accounting. To plead the right to an accounting, the claim need only state facts showing the existence of the relationship which requires an accounting and the statement that some balance is due the Plaintiff. (*Whann v. Dell* (1923) 192 Cal. 680, 684) Here, Plaintiff’s claims are largely equitable in nature to restore title back into his name. Plaintiff alleges no facts on which to infer that he is claiming that any balance is due and owed to him. As such, the Court SUSTAINS the demurrer as to the cause of action for accounting. The Court grants Plaintiff leave amend.

g. Statute of limitation

Defendant’s contention that the facts alleged in the Complaint discloses a defense that the action is barred by the applicable statutes of limitations is without merit. Defendant contends that the Complaint relies on the alleged 2011 refinance transaction while filing suit in 2026. On that basis, Defendant contends that the entire Complaint is subject to a demurrer because it does not plead when each claim accrued or facts supporting delayed discovery, tolling, continuous accrual, or a later actionable repudiation. Contrary to what Defendant contends, the face of the Complaint does not disclose facts showing that the causes of action are barred by the applicable statute of limitations. “Generally, the most likely time limits for a quiet title action are the five-year limitations period for adverse possession ... or the three-year limitations for claims based on fraud and mistake.” (*Salazar v. Thomas* (2015) 236 Cal.App.4th 467, 476-477.) But “no statute of limitations runs against a plaintiff seeking to quiet title while he is

in possession of the property” even if the party in possession knows of such a potential claimant, as “there is no reason to put him to the expense and inconvenience of litigation until such a claim is pressed against him.” (*Muktarian v. Barmby* (1965) 63 Cal.2d 558, 560-561.) Here, the Complaint alleges that the subject property is Plaintiff’s residence and based thereon it can be reasonably inferred that Plaintiff remains in possession of the property, demonstrating that no limitations period has begun to run. Therefore, the demurrer based on the objection that the Complaint is time-barred cannot lie.